

24VECV04719 24VECV04719

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-06

Motion: DEFENDANT GENERAL MOTORS LLC'S MOTION TO STRIKE OR TAX COUNSEL'S COSTS

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Case Number: 24VECV04719 Hearing Date: August 6, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

AYKUI

SARKAVAGYAN, an individual;

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware Limited

Liability Company; and DOES 1 to 25, inclusive,

Defendants.

CASE NO: 24VECV04719

[TENTATIVE]

ORDER RE:

DEFENDANT

GENERAL MOTORS LLC'S MOTION TO STRIKE OR TAX COUNSEL'S COSTS

Dept. W

8:30 a.m.

August 6, 2026

For the
reasons stated below, the Court DENIES Defendant's Motion to Tax Costs in its entirety.

Background

This is a lemon law case.

Plaintiff Aykui Sarkavagyan alleges that on October 16, 2021, she purchased a vehicle manufactured by Defendant General Motors, LLC for \$76,835.49. Plaintiff alleges that the vehicle exhibited numerous defects, which could not be remedied after a reasonable number of repair attempts.

On October 3, 2024,
Plaintiff filed suit against Defendant, alleging two violations of the Song Beverly Act, and two violations of the Magnuson-Moss Warranty Act.

On January 30, 2026, the
parties settled this case. Defendant agreed to pay Plaintiff \$133,000.00 in exchange for dropping their suit.

On May 8, 2026,
Plaintiffs brought a Motion for Attorney Fees, requesting \$20,117.34 in reasonable attorney fees and costs. On July 10, 2026, this Court granted this motion in part, awarding a total of \$7,500.00 in reasonable fees. At the time, the Court declined to rule on the issue of costs, as there was already a pending and partially briefed Motion to Tax Costs scheduled to be heard in August.

Now, the Court hears Defendant's
Motion to Tax Costs.

Discussion

Defendant moves to tax the
entirety of Plaintiff's requested \$1,545.84 in costs. (Mot. to Tax, p.
3:24-27.)

i)

Costs are Awardable

First, the Court must determine whether costs are awardable. Plaintiff in this case is the prevailing party in a Song-Beverly action. Moreover, under the terms of the January 30, 2026, settlement agreement, Plaintiff is deemed the prevailing party and is entitled to recover reasonable attorney fees and costs by noticed motion. (Bowton Decl. ¶ 2.) On May 8, 2026, Plaintiff filed a memorandum of costs on form MC-010, requesting \$1,545.84 in costs. (Memorandum of Costs, p. 1.)

ii)

Analysis

Next, the Court will analyze the motion itself. Typically, in a ruling on a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; if so, the burden is on the objecting party to show the costs to be unnecessary and unreasonable. Where costs are not expressly allowed by statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary. (Foothill-De Anza Comm College Dist. v Emerich (2007) 158 Cal.App.4th 11, 29.) In other words, the Court has the power to disallow costs that are "allowable as a matter of right" when they are not "reasonably necessary." (Perko's Enterprises Inc. v. RRNS Enter. (1992) 4 Cal.App.4th 238, 245.)

However, the case at hand is a Song-Beverly case. This means the controlling statute with respect to costs is CIV § 1794(d). Under CIV § 1794(d), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (CCP § 1794(d).) Thus, the only analysis this Court must engage in is whether the costs requested were "reasonably incurred".

Here, Defendant argues that all of the following costs were not reasonably incurred by Plaintiff: 1) \$170.27 in jury fees; 2) \$1,245.57 in filing and service fees; and 3) \$130 in mediation

costs. (Mot. to Tax, p. 5:2-18.)

1)

Jury Fees

First, Defendant moves to tax Plaintiff's request for \$150 in costs for jury fees. (Id. p. 5:2-6.) Defendant cites to *Perko's Enterprises Inc. v. RRNS Enterprises* for the proposition that "[u]nder California law, jury fees are only recoverable when a trial occurs, as they are intended to cover expenses associated with empaneling a jury." (Mot. to Tax, p. 5:3-4.) Defendant misstates the law. *Perko's* does not hold that jury fees are recoverable only when a trial actually occurs. In fact, the only mention of "jury fees" in *Perko's* is in a footnote that quotes the following language from CCP § 1033.5(a): "[t]he following items are allowable as costs under Section 1032: "(1) Filing, motion, and jury fees." (*Perko's Enterprises Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, fn. 5.) Thus, Defendant's misleading citation holds no weight here.

Moreover, this Court, like others, holds that jury fees are a reasonably incurred cost, even when a case does not go to trial. Under CCP § 631, jury fees must be paid by the first case management conference in the action. (CCP § 631.) Thus, if Plaintiff wished to be entitled to a jury trial, they had to pay this fee early in the case's lifespan. Thus, the fee was reasonably necessary for the litigation of the case.

Additionally, the Court notes that jury fees are specifically enumerated as recoverable costs under CCP § 1033.5(a). While this statute is not the relevant authority in this *Song-Beverly* case, it still provides persuasive authority for the position that California courts believe that jury fees are a reasonably incurred cost.

For these reasons, the Court declines to strike these costs.

2)

Filing and Service Fees

Next, Defendant moves to strike \$1,245.57 in costs related to filing fees and service of process fees. (Mot. to Tax, p. 5:7-14.) Here, Defendant argues that these costs were simple

administrative filings, and therefore not reasonably necessary for the prosecution of this case. (Mot. to Tax, p. 5:7-14.) In support of their argument, Defendant once again cites to the Perko's case, as well as Ladas v. California State Auto Assn. for the general proposition that Plaintiff can only recover costs "reasonably necessary" to the litigation. (Id. p. 5:9-11.) The Court disagrees. Administrative filings are required of every litigant in a case, as documents need to be filed with this Court. Thus, these are standard fees that should be expected of litigation and are therefore reasonably incurred. Additionally, the Court once again notes that filing costs are allowable under CCP § 1033.5(a)(1), suggesting that California courts presume these costs as reasonably incurred.

For these reasons, the Court declines to strike these costs.

3) Mediation Costs

Finally, Defendant moves to strike \$130 in costs related to mediation costs. (Id. p. 5:15-19.) Here, Defendant points out that Plaintiff's memorandum of costs provides no explanation or supporting documents for these costs. (Mot. to Tax, p. 5:16-17.) Additionally, the Court notes that mediation costs are not specifically enumerated as recoverable costs under CCP § 1033.5(a). (See generally, CCP § 1033.5(a).) While this is not the relevant cost statute, it does suggest that these costs are not typically seen by courts as being reasonably necessary for the litigation.

That being said, the Court disagrees that mediation costs are not reasonably incurred. Informal attempts to resolve claims are crucial to the litigation process. This case itself was resolved out of court. Moreover, as Plaintiff points out in their Opposition, Defendant was an active participant in setting up this mediation. (Opp. p. 5:20-24.) Thus, the actions of both parties suggest that this was a reasonably incurred cost.

For these reasons, the Court declines to strike these costs.

4) Summary

In summation, the Court
declines to strike any of the costs requested in this Motion to Tax.

Conclusion

The
Court DENIES Defendant's Motion to Tax Costs in its entirety.

IT IS
SO ORDERED, Plaintiff TO GIVE NOTICE